

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

August 10, 2009

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

RECOGNITION OF CITY EMPLOYEES FOR THEIR INVOLVEMENT WITH "HONOR FLIGHT WYOMING." Mayor Kaysen expressed appreciation to Mandy Liley, Blake Suter and Greg Martinez, Taco John's Ice and Events Center staff, for their assistance with the inaugural honor flight May 19-20, 2009 involving World War II Veterans, noting the Ice and Events Center served as the departure site. He presented Ms. Liley, individually, and Mr. Suter and Mr. Martinez, as part of the team, with Certificates of Appreciation issued to them by the Honor Flight Organization.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.). Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Spiker. Motion carried. Voting "yes" – all members of the governing body.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON JULY 27, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON AUGUST 3, 2009. Motion (per Consent Agenda) carried.

Mr. Spiker moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services (\$227.04), and vacated Council Chambers. Mayor Kaysen declared a conflict of interest due to a voucher payable to him as a reimbursement (\$321.05), relinquishing duties of the chair to Council President Collins, and vacated Council Chambers. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote Mr. Brown and Mayor Kaysen returned to Council Chambers with Mayor Kaysen re-assuming duties of the chair.

Mayor Kaysen opened a Public Meeting to receive comments and input on the Cheyenne Transit Program Fiscal Year 2010, 49 U.S.C., §5307 Federal Operating Grant; required changes for complimentary paratransit bus operations and service hours; and minor route modifications to accommodate American Recovery and Reinvestment Act (Economic Stimulus Funding) funded

improvements for up to approximately 53 bus pullouts/shelters and/or benches at designated areas. Joe Dougherty, Transit Director, provided information on the following: Purpose of the public meetings for this item as well as the next agenda item; program funding amounts and uses; program requirements; services, fares and hours of service; proposed route changes and effective date; complimentary paratransit routes and service hours; different rider/user categories and funding assistance eligibility requirements, and proposed effective date for changes in operations and service hours (Oct. 1, 2009). He further explained user growth observed in the paratransit system, future and existing bus stop locations and styles, and pullout options. He advised the program has received grant funding to provide up to 42 locations with bus pullouts, shelters and/or benches, and stated construction will begin this fall and is anticipated to be completed next summer. There being no further comments or input and purpose of the meeting having been met, Mayor Kaysen closed the public meeting.

Mayor Kaysen opened a Public Meeting to receive comments and input on the submission of a grant application to the Federal Transit Administration, an Operating Agency of the United States Department of Transportation, as authorized by 49 U.S.C., §5307, for approximately \$881,984.00 in Federal Funds. Joe Dougherty, Transit Director, advised he was available to answer any questions. There being no comments or input and purpose of the meeting having been met, Mayor Kaysen closed the public meeting.

Mayor Kaysen opened a Public Hearing to identify the need and opportunity, and to explore funding and alternative solutions for development of the Saddle Ridge Park. Teresa Moore, Parks and Recreation Dept., provided information on the proposed park, stating grant funding is being pursued through the Wyoming Business Council, under its Business Ready Communities - Community Enhancement program, for grant funding to assist with building the neighborhood park, located within Saddle Ridge subdivision in east Cheyenne, as an urban quality amenity. She stated the developer has donated 14 acres for the project of which seven acres are proposed for park development at this time and as part of the grant application. Ms. Moore advised the park will serve residents and workers in the workforce housing and business area, and will be located in the vicinity of the Cheyenne LEADS business park and the new Saddle Ridge school, and also near the Greenway path system, making the area an attractive amenity to businesses and individuals looking to locate in Cheyenne, enhancing the area's quality of life and promoting recreational values. She indicated the developer is also donating assistance with site grading and utility stubs. Ms. Moore clarified the grant, if approved, is a 50/50 matching grant request for \$285,820.00 for utilities, pathways, plazas, restrooms, shelter, landscaping, and two pedestrian bridges to cross drainage ways, and stated the City's match will come from private donations, in-kind labor, 5th penny funds, community facility fees, and value of the donated land. Ms. Moore stated another grant request has been submitted for \$105,000.00 from the Recreation Mill Levy administered through the school district, which, if approved, will cover the City's portion for site grading, playground, 2 multi-purpose sports fields and a park sign. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM A-1 AGRICULTURAL AND RURAL RESIDENTIAL DISTRICT TO MUB MIXED USE WITH BUSINESS EMPHASIS DISTRICT FOR LIFE CARE CENTER, 2ND FILING, A TRACT OF LAND SITUATED IN A PORTION OF THE NW¼SW¼ OF SECTION 20, T.14N., R.66W., 6TH P.M., CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED EAST OF AND ADJACENT TO

POWDERHOUSE ROAD, NORTH OF THE EXISTING LIFE CARE CENTER).” Reporting for Public Services Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body. (#3868)

“AN ORDINANCE SUBMITTING TO THE QUALIFIED PROPERTY OWNERS OF REAL PROPERTY WITHIN THE BOUNDARIES OF THE CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT OF CHEYENNE, WYOMING, EXCLUDING REAL PROPERTY USED EXCLUSIVELY FOR RESIDENTIAL PURPOSES, AT A SPECIAL ELECTION ON TUESDAY, OCTOBER 20, 2009, THE FOLLOWING QUESTION: ‘SHALL A SPECIAL ASSESSMENT OF TEN (10) MILLS BE LEVIED UPON THE ASSESSED VALUE OF REAL PROPERTY WITHIN THE BOUNDARIES OF THE CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT, EXCLUDING REAL PROPERTY USED EXCLUSIVELY FOR RESIDENTIAL PURPOSES, FOR A PERIOD OF FOUR (4) YEARS PURSUANT TO THE PROVISIONS OF WYO. STAT. § 15-9-217(b) AND (c) FOR THE PURPOSES OF (1) ADMINISTRATIVE COSTS; (2) LANDSCAPING OR MAINTENANCE OF PUBLIC AREAS; (3) PLANNING OR MANAGEMENT OF DEVELOPMENT OR IMPROVEMENT ACTIVITIES; (4) PROMOTION OF PUBLIC EVENTS; AND (5) ACTIVITIES IN SUPPORT OF BUSINESS RECRUITMENT AND DEVELOPMENT?’” -- referred to Finance Committee (sponsor - Mr. Collins).

“AN ORDINANCE CREATING SECTION 10.24.170, DRIVING WHILE USING CELLULAR TELEPHONE PROHIBITED; EXCEPTIONS, OF CHAPTER 10.24, RULES OF THE ROAD GENERALLY, OF TITLE 10, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING” -- referred to Public Services Committee (sponsors - Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins and Mr. Spiker).

“AN ORDINANCE REPEALING SECTION 9.08.030, GAMBLING-PROHIBITED-EXCEPTIONS, AND SECTION 9.08.040, VIOLATIONS BY OWNER OR OCCUPANT OF PREMISES WHERE GAMBLING CONDUCTED, OF TITLE 9, PUBLIC PEACE AND WELFARE, CHAPTER 9.08, OFFENSES AGAINST PUBLIC PEACE AND DECENCY, OF THE CHEYENNE CITY CODE” -- referred to Public Services Committee. (sponsors - Mr. Brown, Ms. Broyles, Mr. Collins and Mr. Valdez).

“A RESOLUTION ADOPTING AN AMENDMENT TO THE FUTURE LAND USE PLAN MAP IN PLANCHEYENNE, THE MASTER PLAN FOR THE CITY OF CHEYENNE AND THE COMPREHENSIVE PLAN FOR PORTIONS OF LARAMIE COUNTY, AMENDING THE LAND USE PLAN MAP CATEGORY FROM OPEN SPACE AND PARKS TO COMMUNITY BUSINESS FOR APPROXIMATELY 28 ACRES AT THE SOUTHEAST QUADRANT OF THE INTERSECTION OF WINDMILL ROAD AND DELL RANGE BOULEVARD.” Mr. Brown advised there was no recommendation on the item from Public Services Committee. Mr. Brown moved to adopt, seconded by Mr. Collins. Dr. Rinne moved to postpone to Sept. 14, 2009, seconded by Ms. Broyles. It was advised postponement would allow time for further clarification on issues that have been raised involving the property. Discussion followed in support as well as non-support of postponement; purpose of the resolution, which is to change language in the PlanCheyenne document; PlanCheyenne as a plan only and not a codified document; future options involving sale of the parcel and use of proceeds, and open space use relative to the community business category. Upon inquiry, Matt Ashby, Planning Services Director, advised open space is a potential use of community business type property and that a plan change to community business may not necessarily change the current use

of the land. Discussion followed on open space vs. possible business use(s) on the property; traffic concerns affiliated with the site, official zone change category for the property not being achieved through approval of the resolution, and the resolution being construed as serving as the first step toward potential re-zoning, declaring of surplus and disposal of the property. In response to query concerning what may be achieved during the postponement timeframe, Mayor Kaysen stated postponement would provide the opportunity to review areas of concern, and to provide clarification and information from Planning staff regarding questions that have been raised. Motion to postpone to Sept. 14, 2009 carried. Voting "yes" – all members of the governing body with the exception of Mr. Brown and Mr. Collins voting "no". Due to the one month postponement time frame, Mayor Kaysen advised the item will not be on the next Public Services Committee meeting agenda; it will return on the Sept. 14, 2009 City Council meeting agenda for referral back to Public Services Committee.

"A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR LIFE CARE CENTER, 2ND FILING, A TRACT OF LAND SITUATED IN A PORTION OF THE NW¼SW¼ OF SECTION 20, T.14N., R.66W., 6TH P.M., CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED EAST OF AND ADJACENT TO POWDERHOUSE ROAD, NORTH OF THE EXISTING LIFE CARE CENTER)." Mr. Brown moved to adopt with staff recommendations #1 and 2, seconded by Ms. Case. Upon inquiry regarding parking availability on the site, Kelly Hafner, Benchmark Engineers, advised the current development plan allows for overflow/excess parking in the southwest portion of the property with joint access between the two (existing and new) parcels, and that all PUD and current zoning requirements will be met. Motion carried. Voting "yes" – all members of the governing body. (#5153)

"A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT FOR ROBBINS SUBDIVISION, 2ND FILING, A REPLAT OF A PORTION OF LOT 1, BLOCK ONE, ROBBINS SUBDIVISION, LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF W. COLLEGE DRIVE, EAST OF BRIDLE BIT ROAD)." Mr. Brown moved to adopt with staff recommendations #5, 6 and 7, amending staff recommendation #7 to read as follows: "Western right of way dedication be increased to 40 ft. in order to accommodate future development potential of the area and to allow adjustment of lot line to include a net acreage of 5 acres," seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body. (#5154)

"A RESOLUTION AUTHORIZING THE FILING OF AN APPLICATION WITH THE FEDERAL TRANSIT ADMINISTRATION, AN OPERATING ADMINISTRATION OF THE UNITED STATES DEPARTMENT OF TRANSPORTATION, FOR FEDERAL TRANSPORTATION ASSISTANCE AUTHORIZED BY TITLE 49, UNITED STATES CODE, SECTION 5307." Reporting for Finance Committee, Mr. Spiker moved to adopt, seconded by Ms. Ash. Motion carried. Voting "yes" – all members of the governing body. (#5155)

[CA] "A RESOLUTION RENAMING A PORTION OF SUMMIT DRIVE TO STOREY BOULEVARD." Motion (per Consent Agenda) carried. (#5156)

"A RESOLUTION DECLARING AS SURPLUS CITY-OWNED PROPERTY DESCRIBED GENERALLY AS THE NORTHERLY 85 FT. LESS THE EASTERLY 10 FT. OF LOT 2, BLOCK ONE, BIKE TRAIL ADDITION, CHEYENNE, LARAMIE COUNTY, WY, CONTAINING APPROXIMATELY 21,532 SQ. FT. OR 0.49431 ACRES, MORE OR LESS (GENERALLY

LOCATED SOUTHEAST OF EAST 2ND STREET AND RUSSELL AVENUE INTERSECTION, EXTENDING TO THE WEST SIDE OF MORRIE AVENUE) AND AUTHORIZING THE SALE OF SAID PROPERTY TO FRONTIER REFINING, INC., WHICH SALE WILL BENEFIT THE ECONOMIC DEVELOPMENT OF THE MUNICIPALITY PURSUANT TO WYO. STAT. §15-1-112 (b).” Mayor Kaysen announced, pursuant to a letter of request received from Frontier Refining, the item was being withdrawn from the agenda.

[CA] “A RESOLUTION DESIGNATING THE DIRECTOR OF PURCHASING AS AGENT FOR THE CITY OF CHEYENNE FOR THE PURPOSE OF ORGANIZING AND HOLDING A SURPLUS MUNICIPAL PROPERTY AUCTION AT THE TIME CONVENIENT FOR THE CITY” -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION SUPPORTING THE ALLOCATION OF FISCAL YEAR 2008-2009 WARD I CONTINGENCY FUNDS TO THE CHEYENNE HEALTH AND WELLNESS CENTER TO PROVIDE HEALTH CARE SERVICES TO THE UNDERINSURED” -- referred to Finance Committee (sponsors - Ms. Ash, Ms. Case and Mr. Valdez).

[CA] “A RESOLUTION AUTHORIZING THE SUBMISSION OF A BUSINESS READY COMMUNITY: COMMUNITY ENHANCEMENT GRANT APPLICATION TO THE WYOMING BUSINESS COUNCIL ON BEHALF OF THE GOVERNING BODY OF THE CITY OF CHEYENNE FOR DEVELOPMENT OF SADDLE RIDGE PARK” -- referred to Finance Committee (sponsor - Mr. Brown).

LEASES/CONTRACTS/LEGAL:

[CA] Hunter Management Agreement between the City of Cheyenne, Public Works Department, and the State of Wyoming, Game & Fish Department, for the Lone Tree Hunter Management Area on the Belvoir Ranch. Motion (per Consent Agenda) carried (annual revenue to City - \$2,268.00). (#5426)

[CA] Agreement between the City of Cheyenne, Youth Alternatives, and Laramie County, Wyoming for juvenile probation services. Motion (per Consent Agenda) carried (revenue to City - \$48,000.00). (#5427)

[CA] Contract between the City of Cheyenne Police Department, Victim Witness Program, and the State of Wyoming, Division of Victim Services, for services to victims of crime -- referred to Finance Committee.

[CA] Acceptance of FAA Grant #3-56-0005-44 in the amount of \$300,000 for Airport Planning and Design Projects (Master Plan Update, Terminal Design and Environmental Assessments) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and A-1 Organics for Resources and Services at the Public Composting Facility, Cheyenne, WY -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Southern Corrections Systems of Wyoming, LLC, for the Placement of Misdemeanor Offenders by the Municipal Court -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification No. 1 to Contract No. 5201 between the City of Cheyenne and Ohlson Lavoie Collaborative to allow for additional design work and reimbursable expenditures for the Youth Activity and Community Center in David R. Romero South Cheyenne Community Park (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried. (#5201)

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #M-2-10 for a contract between the City of Cheyenne and Mill Brothers Landscape and Nursery Inc., Ft. Collins, CO, for the Saddle Ridge Neighborhood Park, Phase I, Irrigation Project. Motion (per Consent Agenda) carried (amount not to exceed \$71,119.40). (#5428)

[CA] Authorization of sole source quote from The Southwell Company to purchase Heritage Markers for \$66,500.00 for the City's Heritage Education Project. (Preserve America Grant, Wyoming Cultural Trust Fund Grant, Ward I Contingency funds) -- referred to Finance Committee.

APPOINTMENTS:

Appointment of Mary Eres-Anderson to the Community Action of Laramie County -Executive Board of Directors; and Regina Meena and Sam Janney to the Mayor's Council for People with Disabilities. Mr. Collins moved to approve, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

ANNOUNCEMENTS/REPORTS/MOTIONS:

[CA] Community Facility Fees Report for fiscal Year ending June 30, 2009 -- referred to Finance Committee.

Announcement was made of the Appointment of Jason Stephen to the Contractor Licensing Board, to be confirmed August 24, 2009.

Announcement was made of the Appointment of John Sundahl, Richard O'Gara, Matt Pope and Bret Jones to the Cheyenne Downtown Development Authority, to be confirmed August 24, 2009.

Announcement was made of a Public Hearing to be held at 6:00 p.m. on August 24, 2009 in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, to discuss the submission of an application to the Wyoming Business Council, under Business Ready Communities: Community Enhancement Program, for a grant to develop Saddle Ridge Park.

Announcement was made of a Public Hearing to be held August 24, 2009 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, to discuss the submission of an application to the Wyoming Business Council, under the Business Ready Communities: Business Readiness Project, for a grant to develop a manufacturing building in the Cheyenne Business Parkway.

Announcement was made of a Public Meeting to be held August 17, 2009 at 11:00 a.m. in Room 122, 2101 O'Neil Ave., Cheyenne, WY, to identify the need and opportunity and to explore funding and alternative solutions for development of a manufacturing facility by Cheyenne LEADS.

OTHER CITY BUSINESS:

Mr. Collins introduced a "Cooperative Agreement between the City of Cheyenne and Wyoming Department of Transportation for the construction of a West Lincolnway Transit Bus Pull-out between Westland Road and Interstate 80 (American Recovery and Reinvestment Act funding)". Mr. Collins reviewed the Transit Bus Pull-out amenity and the timeliness involving action on the agreement due to WYDOT's current construction schedule for the West Lincolnway reconstruction project. Mayor Kaysen referred the item to Finance Committee.

Due to the timeliness to provide consideration of approval for the aforementioned Cooperative Agreement with WYDOT, Mayor Kaysen announced a Special Meeting of the Governing Body of the City of Cheyenne, Wyoming will be held Monday, August 17, 2009 at 12:05 p.m. (or immediately following adjournment of the Vouchers Meeting (beginning at noon) if that meeting extends past 12:05 p.m.) in City Council Chambers, 2101 O'Neil Avenue, to consider approval of the Cooperative Agreement between the City of Cheyenne and Wyoming Department of Transportation for the construction of a West Lincolnway Transit Bus Pull-out between Westland Road and Interstate 80 (American Recovery and Reinvestment Act funding). He further stated there will be no other business conducted at the Special Meeting. Mr. Pierson advised he would be unable to be present at the Special Meeting.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:50 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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